herein shall in all other respects remain in full force and effect.

Dated: February 26, 1943.

[SEAL] DAN H. WHEELER,
Director.

[F. R. Doc. 43-3212; Filed, March 1, 1943; 10:45 a. m.]

[Docket No. B-370]

BROWN FUEL COMPANY

NOTICE OF AND ORDER FOR HEARING

A. Under provisions of the Bituminous Coal Act of 1937, as amended (the "Act"), district boards are authorized in appropriate cases to file complaints of violations of the Act, the Bituminous Coal Code (the "Code"), and rules and regulations of the Bituminous Coal Division (the "Division").

B. The Division, on November 4, 1942, referred to District Board No. 3, information in its possession bearing on whether violations of the Act, the Code, orders, and rules and regulations promulgated thereunder; and particularly Rule 13 (A) of section II of the Marketing Rules and Regulations, have been committed by Brown Fuel Company, the code member above mentioned (hereinafter referred to as the "Code Member") a corporation, Uniontown, Pennsylvania, whose code membership became effective as of July 7, 1937, operator of the Henshaw Mine, Mine Index No. 77 located in Barbour County, West Virginia, District No. 3, in connection with sales, for rail shipment, of coal produced at the aforesaid mine contrary to the provisions of Rule 13 (A) of section II of the Marketing Rules and Regulations as follows:

By allowing or paying directly or indirectly sales agency commissions, pursuant to sales agency contracts entered into after August 8, 1940, appointing the sales agents indicated below, on sales of coal produced at its said mine and sold through said sales agents and delivered to various purchasers after January 1, 1941, as follows:

Sales agents	Date of sales agency contracts	Period of sales (1941)	Sales by Tons	Commissions allowed	Allowable commissions
Eastern Coal & Coke Company	Aug. 14, 1940	Jan. 4 to Aug. 29	13,929.8	$1,992.53	$1,592.17
MacQuown Fuels	Oct. 16, 1940	Jan. 22 to Dec. 30	9,040.60	1,393.83	452.04
A. K. Althouse & Company	Jan. 30, 1941	Feb. 3 to May 31	1,215.05	198.13	121.51

which commissions as allowed or paid, directly or indirectly, were in excess of the maximum discounts which said sales agents could have received if they had purchased said coal as distributors under the schedule of due and reasonable maximum discounts for distributors established pursuant to section 4 II (h) of the Act and that such commissions so allowed and paid, directly or indirectly, resulted in a violation of Rule 13 (A) of section II of the Marketing Rules and Regulations by said code member by reason of the fact that no applications, pursuant to said Rule, were approved by the Division permitting said code member to allow and pay said commissions.

C. District Board No. 3 by letter dated January 21, 1943, notified the Division that it does not intend to institute compliance proceedings against the code member in this matter.

D. Section 6 (a) of the Act provides in part that in the event that a district board shall fail for any reason to take action authorized or required by this Act, then the Division may take such action in lieu of the district board.

E. District Board No. 3 having failed to take action as authorized or required by the Act on the matters hereinabove described, the Division finds it necessary in the proper administration of the Act to take action thereon in lieu of the Board, as in this Notice of and Order for Hearing provided pursuant to section 6 (a) and other pertinent provisions of the Act for the purpose of determining:

(1) whether the code member has wilfully violated Rule 13 (A) of section II of the Marketing Rules and Regulations; and

(2) whether in the event that the code member is found to have violated the Act, the Code, and orders, rules and regulations promulgated thereunder, an order should be entered revoking the code membership of said Brown Fuel Company, or directing said code member to cease and desist from violating the Act, the Code and orders, rules and regulations promulgated thereunder.

It is hereby ordered, That a hearing pursuant to sections 4 II (j), 5 (b), and 6 (a), and other pertinent provisions of the Act be held on March 31, 1943, at 10 a. m., at a hearing room of the Division at the Court Room No. 4, New Federal Bldg., Pittsburgh, Pennsylvania, to determine whether the aforementioned code member has committed the violations in the respects heretofore described and whether the code membership of said code member and the code member's right to an exemption from the taxes imposed by section 3520 (b) (1) of the Internal Revenue Code, should be revoked or an order should be entered directing the code member to cease and desist from violating the Act, the Code, and orders, rules and regulations of the Division promulgated thereunder.

It is further ordered, That Joseph A. Huston, or any other officer or officers of the Division duly designated for that purpose shall preside at the hearing in such matter. The officer so designated to preside at such hearing is hereby authorized to conduct said hearing, to administer oaths and affirmations, examine witnesses, take evidence, to continue said hearing from time to time and to such places as he may direct by announcement at said hearing or any adjourned hearing, or by subsequent notice, and to prepare and submit proposed findings of fact and conclusions, and the recommendation of an appropriate order in the premises, and to perform all other duties in connection therewith authorized by law.

Notice of such hearing is hereby given to said code member and to all other parties herein and to all persons or entities having an interest in such proceeding. Any person or entity eligible under § 301.123 of the Rules and Regulations Governing Practice and Procedure Before the Division in Proceedings Instituted Pursuant to sections 4 II (j) and 5 (b) of the Act may file a petition for intervention not later than five (5) days before the date set for hearing herein.

Notice is also hereby given that any application, pursuant to § 301.132 of the Rules of Practice and Procedure before the Division for the disposition of this proceeding without formal hearing, must be filed not later than fifteen (15) days after receipt by the code member of this Notice of and Order for Hearing.

Notice is hereby given that answer setting forth the position of the code member with reference to the matters hereinbefore described must be filed with the Division at its Washington Office or with one of the Statistical Bureaus of the Division within twenty (20) days after the date of service of a copy hereof on the code member; and that any failure to file an answer within such period, unless otherwise ordered, shall be deemed to be an admission by the code member of the commission of the violations hereinbefore described and a consent to the entry of an appropriate order thereon.

All persons are hereby notified that the hearing in the above-entitled matter and orders entered therein may concern in addition to the charges specifically alleged herein, other matters incidental and related thereto, whether raised by amendment, petition for intervention, or otherwise, and all persons are cautioned to be guided accordingly.

Dated: February 26, 1943.

[SEAL] DAN H. WHEELER,
Director.

[F. R. Doc. 43-3213; Filed, March 1, 1943; 10:45 a. m.]

General Land Office.

[Public Land Order 91]

CALIFORNIA

REVOCATION OF EXECUTIVE ORDER WITHDRAWING PUBLIC LANDS

By virtue of the authority contained in the act of June 25, 1910, c. 421, 36 Stat. 847 (U. S. C., title 43, sec. 141), and pursuant to Executive Order No. 9146 of April 24, 1942, *It is ordered,* As follows:

Executive Order No. 5218 of November 4, 1929, withdrawing public lands in California, pending a resurvey, is hereby revoked.

This order shall become effective upon the date of the official filing of the plat of resurvey of the lands involved.

ABE FORTAS,
Acting Secretary of the Interior.

FEBRUARY 18, 1943.

[F. R. Doc. 43-3204; Filed, March 1, 1943; 10:13 a. m.]